RESIDENTIAL MANAGEMENT & DATA

MARTIN KEEGAN

OVERVIEW

- Management of collective residential spaces
- Companies House, not HMLR

EFFECTIVENESS OF REMEDIES

✅ Right To Manage
✅ Buying the freehold
✅ Court-appointed manager (s24)
❓ Pre-packed Residents Mgmt Companies
❌ Disputing service charges
❌ *-ombudsman

MUTUALITY

- minimises moral hazard
- Full vs Partial mutuality

ORGANISATIONAL STRUCTURES



RESIDENTS MANAGEMENT COMPANIES

- definitional issues (industry vs activists vs legislators)
- in this talk: industry's sense of RMC used throughout

RMC: INDUSTRY DEFINITION

- limited to a specific building or site
- membership restricted to relevant homeowners
- control need not be by members
- about 55000 exist

RMC: ACTIVIST DEFINITION

- fully mutual
- member-controlled

RMC VARIATION AXES

- member control
- type of responsibility
- type of property
- type of tenure

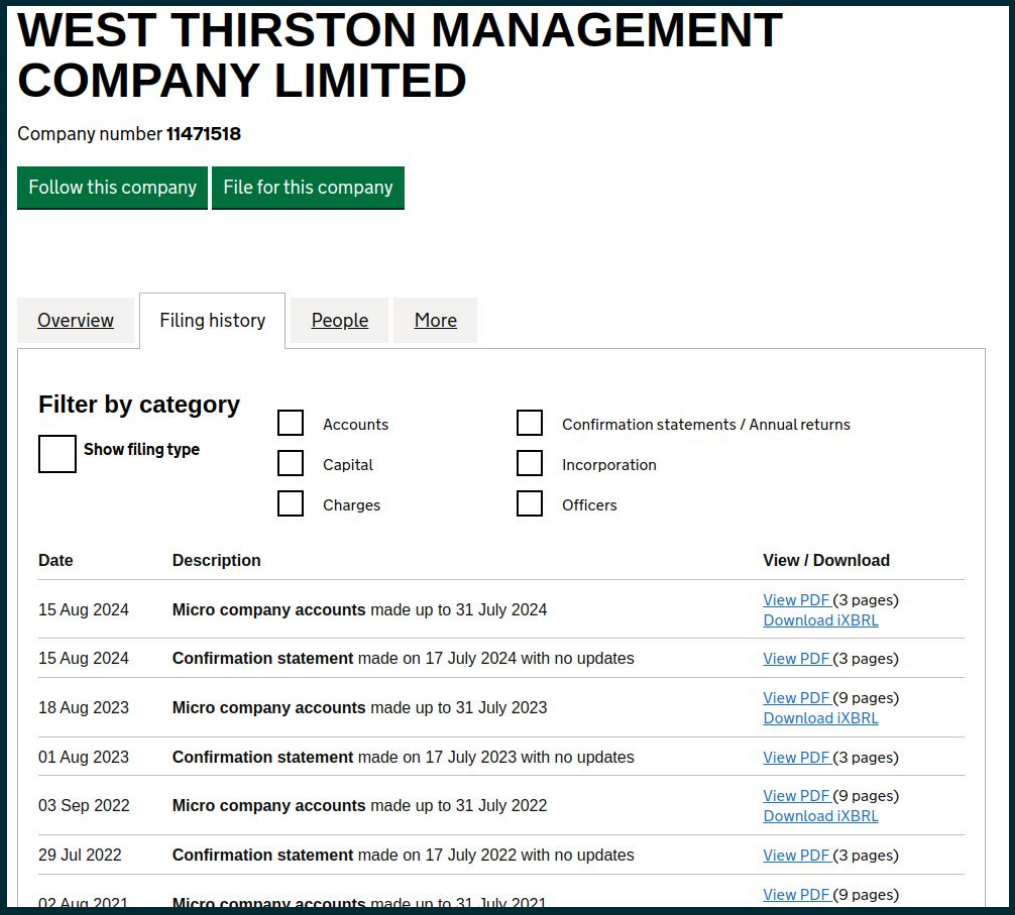
RMC CONTROL

- Transfer Date
- voting restrictions
- restrictions on replacing agents
- un-registered rules

FINDING THE RIGHT FILING

- never filed
- misfiled (amendment vs result)
- combined with NM01 etc

FINDING FILINGS



WEST THIRSTON MANAGEMENT COMPANY LIMITED

Company number **11471518**

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02 Aug 2021	**Micro company accounts** made up to 31 July 2021	View PDF (9 pages)

FINDING THE ARTICLES

- OCR
- manual inspection
- ChatGPT

EXAMPLE ARTICLES

THE COMPANIES ACT 2006

PRIVATE COMPANY LIMITED BY SHARES

ARTICLES OF ASSOCIATION OF

WEST THIRSTON MANAGEMENT COMPANY LIMITED

1. PRELIMINARY

1.1 The model articles of association for private companies limited by shares contained in Schedule 1 to the Companies (Model Articles) Regulations 2008 (SI 2008 No. 3229) (the "Model Articles") shall apply to the Company save in so far as they are excluded or modified hereby and such Model Articles and the articles set out below shall be the Articles of Association of the Company (the "Articles").

1.2 In these Articles, any reference to a provision of the Companies Act 2006 shall be deemed to include a reference to any statutory modification or re-enactment of that provision for the time being in force.

1.3 Model Articles 3, 9(2), 14, 17(1), 19(5), 26(5), 28(3) and 44(4) do not apply to the Company.

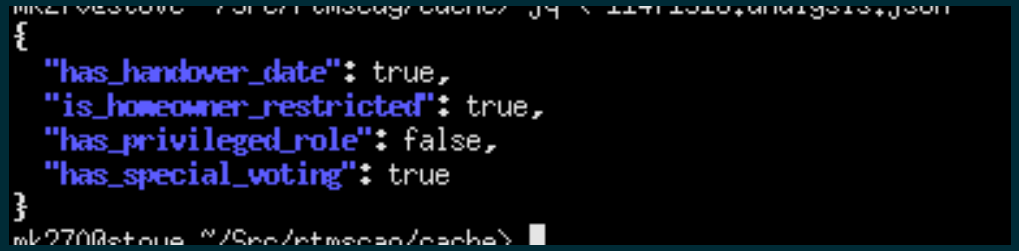
1.4 The headings used in these Articles are included for the sake of convenience only and shall be ignored in construing the language or meaning of these Articles.

1.5 In these Articles, unless the context otherwise requires, references to nouns in the plural form shall be deemed to include the singular and vice versa, references to one gender include all genders and references to persons include bodies corporate and

OTHER INFO IN FILINGS

- PSC Register
- AR01/CS01 shareholdings

AUTOMATED ANALYSIS



RESULTS

- 45% captive
- surprising even to the good guys
- Link to blog post

COMPANIES HOUSE ROLE

- widespread technical violations unpunished
- stenographer, not judge
- fund Insolvency Service

PLUG

✅ Leasehold Knowledge Partnership
✅ FreeLeaseholders
❌ HORNets

THANKS

- leaseholdreform.org.uk
- @mk270
- see also my blog, Youtube channel and gemini capsule